

**CHAPTER xxxviii.**

An Act for conferring further powers upon the Gorleston and Southtown Gas Company. A.D. 1903.
[30th June 1903.]

WHEREAS by the Gorleston and Southtown Gas Act 1876 (hereinafter called “the recited Act”) the Gorleston and Southtown Gas Light and Coke Company was dissolved and re-incorporated for the purpose of making and supplying gas within the parishes townships hamlets extra parochial and other places of Gorleston Southtown (otherwise Little Yarmouth) Westtown and Cobholme Island in the several counties of Suffolk and Norfolk or one of them :

And whereas the demand for gas within the Company’s limits of supply is increasing and the existing works of the Company and the lands whereon the same are erected are insufficient to enable the Company to meet such demand and it is expedient that the Company should be authorised to enlarge and extend their works and on the lands described in the Schedule to this Act to construct and maintain gasworks and works for the manufacture and storage of gas and of residual products as hereinafter provided :

And whereas the authorised capital of the Company consists of—

One thousand five hundred shares of ten pounds each distinguished as “original capital” bearing a maximum dividend not exceeding the rate of ten pounds per centum per annum ;

One thousand shares of ten pounds each distinguished as “additional capital” bearing a maximum dividend not exceeding the rate of seven pounds per centum per annum ;

[*Price 1s.*]

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A.D. 1903. — and the Company is authorised to raise on mortgage bond or debenture stock sums not exceeding in the whole six thousand and fifty-five pounds :

And whereas the Company has raised and expended upon its undertaking the whole of its share capital and has borrowed on mortgage or bond the sum of four thousand five hundred and fifty pounds :

And whereas it is expedient that the Company be authorised to raise further capital and that its borrowing powers be enlarged and that such further powers be conferred upon the Company as are hereinafter contained :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited for all purposes as the Gorleston and Southtown Gas Act 1903.

Incorporation of Acts. 2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts except the provisions with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking :

The Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ; A.D. 1903.

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. The expression "the corporation" means the mayor aldermen and burgesses of the borough of Great Yarmouth. Interpretation.

4. The Company may hold and use the lands described in the Schedule to this Act and may thereon or on any part thereof erect construct lay down provide and maintain alter improve enlarge extend and renew or discontinue gasworks and works for the manufacture and storage of gas and for the manufacture conversion utilisation storage and distribution of materials used in or residual products resulting from such manufacture and the Company may also upon such lands provide lay down maintain alter improve enlarge extend and renew or discontinue all necessary retorts gasholders receivers drains sewers mains pipes machinery meters lamps lamp-posts burners stop cocks and other works and apparatus and conveniences and do all such acts as they may think proper for making and storing gas and for supplying gas within their limits for the supply of gas and may make store and supply gas accordingly and manufacture sell provide supply and deal in lime coke chemicals tar pitch asphaltum ammoniacal liquor and all other products or residuum of any materials employed in or resulting from the manufacture of gas. Power to construct gasworks.

5. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to any lands which they are otherwise authorised to acquire any lands and hereditaments not exceeding in the whole five acres which the Company may from time to time require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands. Power to purchase lands by agreement.

A.D. 1903.

Restriction
on taking
houses of
labouring
class.

6. The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December next before the passing of this Act were occupied wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Power to
erect work-
men's dwell-
ings &c.

7. The Company may upon any lands for the time being belonging to or held by them erect provide fit up and maintain dwelling-houses and cottages with all suitable buildings and conveniences connected therewith for the residence and accommodation of their officers workmen and servants and their families and may let such dwelling-houses and cottages for such periods and upon and under such rents terms and conditions as the Company may think fit and the Company may also make and maintain such roads and approaches to such dwelling-houses and cottages as may be necessary for the convenient use and enjoyment of the same and as the Company may think fit and for the purposes of this section the Company may hold any lands which they may acquire under the authority of this Act free from the provisions of the Lands Clauses Consolidation Act 1845 or of the recited Act with respect to superfluous lands.

8. No lands shall be used by the Company for the purposes of manufacturing gas or residual products except the lands described in the Schedule to this Act and in the Schedule A to the recited Act. And no lands (other than the lands described in the said schedules) shall be used by the Company for the erection of a gasholder or for the storage of gas except with the consent in writing of the corporation which shall not be unreasonably withheld and if any question shall arise between the Company and the corporation as to whether such consent is unreasonably withheld the same shall be determined by the Board of Trade.

A.D. 1903.
Scheduled
lands only to
be used for
gasworks.

9. The Company may raise additional capital not exceeding in the whole forty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall such shares or stock vest in the person accepting the same unless and until the full price of such shares or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided always that not more than one half of such capital shall be issued as preference capital. Provided also that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty thousand pounds.

Power to
Company to
raise addi-
tional capital.

10. The capital in new ordinary shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the existing capital of the Company of the same class or description existing at the date of the creation of such new ordinary shares or stock and the new shares or stock were shares or stock in that capital.

New ordi-
nary shares
or stock to
be subject to
same inci-
dents as
existing
shares or
stock.

11. The additional capital in new shares or stock so created shall form part of the capital of the Company.

New capital to
form part of
capital of Com-
pany.

12. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such

Dividends on
new shares
or stock.

A.D. 1903. — new shares or to the whole amount of such stock as the case may be.

Profits of
Company
limited.

13. The Company shall not in any year declare or make out of their profits any larger dividends on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of such additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of such additional capital as may be issued as preference capital.

Restriction
on payment
of arrears of
interest.

14. Notwithstanding anything contained in the recited Act or in this Act or in any Act incorporated therewith respectively it shall not be lawful for the Company by the application of any of their profits or funds to make up the deficiency in any dividends on the stock or shares created under the recited Act which may have fallen short of the prescribed rates previous to the thirty-first day of December one thousand eight hundred and ninety-two.

Appointment
of a receiver.

15. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall be not less than two thousand pounds in the whole.

New shares
or stock to
be offered by
auction or
tender.

16. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or stock of the Company are at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no

priority of tender shall be allowed to any holder of shares or stock in the Company. A.D. 1903.

17. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase money of capital sold to be paid within three months.

18. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk of the borough of Great Yarmouth and to the clerk to the council of any urban or rural district into which any part of the limits of supply may extend and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of the Company for the supply of gas.

Notice to be given as to sale of shares or stock.

19. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act and the reserve put upon such shares or stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Shares or stock not sold by auction or by tender to be offered to holders of ordinary shares or stock.

20. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital by this Act authorised to be created and issued any sum or sums not exceeding in the whole one-third part of the amount which the Company have at the time actually raised by the issue of shares or stock in such additional capital but no part thereof shall be

Power to borrow in respect of additional capital.

A.D. 1903. — borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Provisions
as to auction
to apply to
loan capital.

21. The provisions of this Act relating to the offering of shares or stock for sale by public auction or by tender and to the sale thereof and to the application of the premiums arising from such sale shall so far as applicable apply mutatis mutandis in relation to the granting of mortgages and the issuing of debenture stock by the Company after the passing of this Act.

Priority of
mortgages
and debenture
stock
over other
debts.

22. All money raised or to be raised by the Company on mortgage or by the issue of debenture stock shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Existing
mortgages
to have
priority.

23. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance thereof have priority over all mortgages granted in pursuance of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Power to
create debenture
stock.

24. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies' Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the

Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by all mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act. A.D. 1903.

25. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

26. All moneys raised under this Act whether by shares or stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable. Application of moneys.

27. Notwithstanding anything contained in the Gasworks Clauses Act 1847 the Company shall not out of the clear profits of the undertaking in any year carry into the reserve fund a sum exceeding one per centum on the paid-up capital of the Company nor shall the reserve fund at any time exceed a sum equal to one-tenth part of the paid-up capital of the Company for the time being and such sum shall be the prescribed sum for the purposes of the Gasworks Clauses Act 1847. Provisions as to reserve fund.

28. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under Parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Company may contract with local authority &c. for supply in bulk.

29. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and subject to the reasonable approval of the corporation may lay and may from time to time take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Power to lay pipes in streets not dedicated to public use.

A.D. 1903. — Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
utilise pipes
for ancillary
purposes.

30.—(1) It shall be lawful for the Company with the consent of the corporation which consent shall not be unreasonably withheld to lay down place repair alter remove and renew mains pipes and culverts within the limits of the Company for the supply of gas as defined by the recited Act for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with or ancillary to their business and for such purposes to utilise any mains pipes or works for the time being of the Company whether laid or placed in any street or elsewhere within the said limits and the provisions of the Gasworks Clauses Act 1847 with respect to breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

(2) If any question shall arise between the corporation and the Company as to whether the consent of the corporation under this section is unreasonably withheld the same shall be determined by the Board of Trade.

As to con-
struction
and placing
of pipes &c.
between
mains and
meters.

31. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of the Company for the supply of gas and a copy thereof shall be kept exhibited in the office of the Company :

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building : A.D. 1903.

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

32. Section 48 of the recited Act (Limiting price of gas) is hereby repealed and from and after the passing of this Act the price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall not exceed four shillings and ninepence per one thousand cubic feet. Maximum
price of gas.

33. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the Anti-fluctu-
ators for gas
engines.

A.D. 1903. — expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Power to supply gas fittings &c. for heating and other purposes.

34.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines dynamos motors stoves ranges pipes meters and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Period of error in defective meters.

35. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Gas consumers to give notice to Company before removing.

36. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply

gas to such premises whichever shall first occur Notice of the A.D. 1903.
effect of this enactment shall be contained in every demand note —
for gas rent.

37. All the costs charges and expenses preliminary to and of Expenses
and incident to the preparing applying for and the obtaining and of Act.
passing of this Act or otherwise in relation thereto shall be paid by
the Company.

A.D. 1903. The SCHEDULE referred to in the foregoing Act.

Lands to be held and used by the Company for the manufacture and storage of gas and residual products :—

- (A) All that piece of land containing by admeasurement 7,593 square yards or thereabouts situate and being in the parish of Gorleston and county borough of Great Yarmouth in the county of Norfolk bounded on the north in part by glebe land belonging or reputed to belong to the vicar and patrons of the living of the vicarage and parish church of Saint Paul Norwich and in other part by the land (B) next hereinafter described on the south by land and hereditaments belonging or reputed to belong to Mrs. Henrietta Mary McOubrey Jonathan Wright Shulver John Coles Wright James Lowther and Arthur Ramsden Whitham on the east by the public highway known as Southtown Road and on the west by a ditch or dyke dividing the said piece of land from Southtown Common :
- (B) A triangular piece of land containing by admeasurement 369 square yards or thereabouts situate in the parish of Gorleston and county borough of Great Yarmouth in the county of Norfolk adjoining and bounded on the south-western side by the before-mentioned piece of land (A) on the north by glebe land belonging or reputed to belong to the vicar and patrons of the living of the vicarage and parish church of Saint Paul Norwich and on the east by the public highway known as Southtown Road.

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